

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

William N. Brownsberger

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting anticompetitive conduct and agreements and strengthening the Massachusetts Antitrust Act.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>William N. Brownsberger</i>	<i>Suffolk and Middlesex</i>
<i>Andrea Joy Campbell</i>	<i>Attorney General</i>

SENATE No.

By Mr. Brownsberger, a petition (accompanied by bill) (subject to Joint Rule 12) of William N. Brownsberger and Andrea Joy Campbell, Attorney General for legislation to prohibit anticompetitive conduct and agreement and strengthening the Massachusetts Antitrust Act. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting anticompetitive conduct and agreements and strengthening the Massachusetts Antitrust Act.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 93 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the definition of “New England”.

3 SECTION 2. Said section 2 of said chapter 93, as so appearing, is hereby further
4 amended by striking out, in the definition of “Trade or commerce”, the words “; provided,
5 however, that trade or commerce shall not include the conveyance, transfer or use of real
6 property”.

7 SECTION 3. Said section 2 of said chapter 93, as so appearing, is hereby further
8 amended by inserting at the end of the definition of “Trade or commerce”, the words:- or the
9 recruitment, hiring, compensation, or retention of employees or other workers in any labor
10 market.

SECTION 4. Said section 2 of said chapter 93, as so appearing, is hereby further amended by inserting at the end of the definition of “Demand”, the words:- or pursuant to section six of chapter 93A.

SECTION 5. Said chapter 93, as so appearing, is hereby amended by striking out section 3, as so appearing, and inserting in place the following section:-

Section 3. Nothing in the Massachusetts Antitrust Act, hereinafter referred to as the Act, shall apply to any course of conduct, pattern of activity, or activities unless they occur or have a competitive impact within the commonwealth.

For purposes of the Act, the burden of proof shall be upon the party asserting lack of jurisdiction under this chapter.

SECTION 6. Section 4 of said chapter 93, as so appearing, is hereby amended by inserting, at the end of the section, the following paragraphs:-

Any person who knowingly violates or attempts to violate this section, shall be punished by a fine not exceeding one million dollars if a corporation or other entity engaged in trade or commerce, or, if any natural person, by a fine not exceeding one hundred thousand dollars or by imprisonment not exceeding five years, or both.

The superior court shall have jurisdiction of actions brought under this section. Such actions may be brought by the attorney general in any county in which said violation occurred in whole or in part, or in Suffolk county.

SECTION 7. Said chapter 93, as so appearing, is hereby amended by striking out section 10.

SECTION 8. The first paragraph of Section 8 of said chapter 93, as so appearing, is hereby amended by inserting, after the words “upon such person”, the following words:- , or upon any other person with knowledge relevant to the investigation,.

SECTION 9. The fourth paragraph of Section 8 of said chapter 93, as so appearing, is hereby amended by inserting after the words, “service of a complaint”, the following words:- or a subpoena.

SECTION 10. The ninth paragraph of Section 8 of said chapter 93, as so appearing, is hereby amended by inserting, at the end of the paragraph, the following words:- , except insofar as the witness consents to the presence of any other persons who may be admitted in the sole discretion of the examiner.

SECTION 11. The tenth paragraph of Section 8 of said chapter 93, as so appearing, is hereby amended by inserting after the words “making such changes”, the following words:- within thirty days of being provided access to the transcript.

SECTION 12. The first sentence of the eleventh paragraph of Section 8 of said chapter 93, as so appearing, is hereby amended by inserting after the words “any person except”, the following words:- in furtherance of its investigation or.

SECTION 13. The last sentence of Section 8 of said chapter 93, as so appearing, is hereby amended by striking the word “two” and replacing it with the word:- five.

SECTION 14. The last sentence of Section 8 of said chapter 93, as so appearing, is hereby further amended by inserting, at the end of the sentence after the phrase “who provided them” the following words:- , or destroy all such documents.

SECTION 15. The twelfth paragraph of Section 8 of said chapter 93, as so appearing, is hereby amended by inserting, at the end of the paragraph, the following words:- , except with leave of court upon a motion for good cause shown.

SECTION 16. The last paragraph of Section 8 of said chapter 93, as so appearing, is hereby amended by striking the words “a written agreement from such officials to abide by the restrictions of this section and any orders entered pursuant to this section”, and replacing them with the following words:- an agreement from such officials that it will be used for law enforcement purposes only.

SECTION 17. Section 8 of said chapter 93, as so appearing, is hereby further amended by inserting, at the end of the section, the following paragraphs:-

Any individual who provides testimony pursuant to this Act who willfully swears or affirms falsely in a matter material to the issue or point in question shall be guilty of perjury pursuant to section 1 of Chapter 268.

Whenever the attorney general has reasonable cause to believe that any person has engaged in, is engaging in, or is about to engage in any act or practice prohibited by this act, the attorney general may, prior to the commencement of any civil or criminal action as provided for by this act, issue in writing and cause to be served upon such person, or upon any other person with knowledge relevant to the investigation, a civil investigative demand pursuant to Section 6 of Chapter 93A.

SECTION 18. Section 9 of said chapter 93, as so appearing, is hereby amended by striking out the first paragraph, and inserting in place the following paragraph:-

74 The attorney general may bring a civil action in the name of the commonwealth to
75 prevent and restrain violations of section four, five or six of this chapter; as parens patriae on
76 behalf of natural persons residing in the commonwealth, to secure monetary relief for damages
77 sustained, directly or indirectly, by such natural persons to their property by reason of any
78 violation of sections four, five or six; and on behalf of the commonwealth and its public agencies
79 and political subdivisions for damages sustained, directly or indirectly, together with costs of
80 suit, for injuries to their property by reason of violations of section four, five or six. In any such
81 suit, the attorney general may recover a civil penalty of not more than one million dollars for a
82 corporation or other entity engaged in trade or commerce, or one hundred thousand dollars for
83 any natural person, for any course of conduct, pattern of activity or activities which violate
84 section four, five or six. In any such action brought on behalf of the commonwealth and its
85 public agencies and political subdivisions for damages sustained to their property or in the
86 commonwealth's parens patriae capacity for damages sustained by natural persons, the court
87 shall award, together with the costs of suit, including reasonable attorneys' fees, actual damages
88 sustained, and may award up to three times the amount of actual damages sustained.

89 SECTION 19. Section 9 of said chapter 93, as so appearing, is hereby further amended by
90 striking from the third paragraph, the following words: "with the consent of a defendant,".

91 SECTION 20. Section 12 of said chapter 93, as so appearing, is hereby amended by
92 striking out the first paragraph, and inserting in place the following paragraph:-

93 Any person who shall be injured, directly or indirectly, in his business or property by
94 reason of a violation of the provisions of this chapter may sue therefor and shall recover the
95 actual damages sustained, together with the costs of suit, including reasonable attorneys' fees,

96 and may recover up to three times the amount of actual damage sustained, together with the costs
97 of suit, including reasonable attorneys' fees.

98 SECTION 21. Section 13 of chapter 93, as so appearing, is hereby amended by striking
99 out, throughout the section, the word "four" and replacing it with the word:- five.

100 SECTION 22. Section 13 of said chapter 93, as so appearing, is hereby further amended
101 by inserting, at the end of the section, the following paragraph:-

102 In determining the time limited for the commencement of an action under this Act, a
103 claim brought under this Act is a "personal action" for purposes of section twelve of Chapter
104 260.